

property to avoid exposing others to an unreasonable risk of injury; the failure to fulfill this duty is negligence. (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.) “[T]he existence and scope of a property owner’s duty to protect against third party crime is a question of law for the court to resolve.” (*Castaneda v. Olsher* (2007) 41 Cal.4th 1205, 1213.)

First, a business proprietor owes “a special-relationship-based duty to undertake reasonable and minimally burdensome measures to assist customers or invitees who face danger from imminent or ongoing criminal assaultive conduct occurring upon the premises.” (*Morris v. De La Torre* (2005) 36 Cal.4th 260, 269.) Here, Plaintiff was allegedly an invitee lawfully on the hotel premises as a County employee performing her job duties. (SAC ¶¶ 18, 21 29, 63.) Therefore, Defendants allegedly owed Plaintiff a duty to maintain a safe environment and assist in ongoing dangers. “Turning to the question of the scope of a landlord’s duty to provide protection from foreseeable third party crime, ... we have recognized that the scope of the duty is determined in part by balancing the foreseeability of the harm against the burden of the duty to be imposed.” (*Castaneda v. Olsher, supra*, 41 Cal.4th at 1213.) Here, the SAC alleges that “[d]espite being on notice of the attack as it was occurring, and despite knowledge of the incident that occurred on the Holiday Inn premises the day prior, defendants Holiday Inn and Defendant Branden Becenti did nothing to help the Plaintiff or otherwise deescalate the attack.” (SAC ¶ 23.) The SAC further alleges that Defendants “had witnessed” Plaintiff being attacked “via camera footage of the gymnasium,” (*Id.*, ¶ 28), and “[e]ven though Holiday Inn was on notice and was observing the attack in real time ... they did nothing to assist the Plaintiff who was lawfully on the premise[s] at the time.” (*Id.*, ¶ 63.) Here, the SAC asserts that Defendants failed to take *any* reasonable protective measures, and that Defendants breached their duty by failing to “provide the protection of immediate intervention to stop” the attack. (*Id.*, ¶ 72).

As to foreseeability, the SAC alleges that “the police had been called due to an incident with the child the previous night” (*Id.*, ¶ 19), that Defendants had knowledge of the incident that occurred on the Holiday Inn premises the day prior (*Id.*, ¶ 23), and that the hotel and Becenti “were both aware of the child’s violent tendencies and past police intervention.” (*Id.*, ¶ 28.) At the pleading stage, these allegations must be accepted as true. A police-involved violent incident by the same individual at the same property the night before constitutes a prior similar incident that would place a property owner on notice of a threat.

Contrary to Defendants’ argument, whether calling the police would have been futile is a question that cannot be resolved on demurrer. Consequently, because the SAC alleges a special relationship, prior notice of a threat, and a failure to take any protective measures during an ongoing assault, the SAC stated facts sufficient for a premises liability claim. The demurrer to the 3rd cause of action is overruled.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2406360	MONDRAGON VS COUNTY OF RIVERSIDE	MOTION TO STRIKE PORTIONS OF PLAINTIFF'S 2ND AMENDED COMPLAINT

Tentative Ruling: Granted.

No opposition filed.

The following portions of the operative 2nd Amended Complaint are ordered stricken:

1. From paragraph 63 (page 13, line 17), the words: “intentional and malicious, ” and the phrase “intentional and malicious” wherever it appears in that paragraph in reference to Defendant Holiday Inn Express & Suites;
2. From the Prayer for Relief, subparagraph B (page 22, lines 19–22): “For punitive damages pursuant to Civil Code §3294 against the individual defendants only for intentional misconduct, malice, and oppression, to punish wrongdoing and deter future misconduct;” — to the extent the prayer seeks punitive damages against Defendant Branden Becenti;
3. From the Prayer for Relief, subparagraph C (page 22, line 23): “For attorney fees;” — in its entirety as to Moving Defendants Holiday Inn Express & Suites and Branden Becenti.

Moving party to provide notice pursuant to CCP 1019.5.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2504787	HUNTINGTON VS VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION	MOTION TO ENFORCE COMPLIANCE WITH THE COURT'S 02.09.26 DISCOVERY ORDER BY JEFF HUNTINGTON, LI CAO

Tentative Ruling: Granted in part.

Responding party is ordered to serve verified further responses to the Demand for Production of Documents, Set One, No. 15-22, without objections within 30 days of service of notice (CCP § 2031.310).

Moving party to provide notice pursuant to CCP 1019.5.

This is a lemon law action. On July 1, 2025, Plaintiffs Jeff Huntington and Li Cao (“Plaintiffs”) filed a Complaint against Defendant Volkswagen Group of America, Inc. (“Defendant”) for: (1) breach of express warranty in violation of the Song Beverly Act; (2) breach of implied warranty in violation of the Song Beverly Act; and (3) violation of section 1793.2 of the Song Beverly Act. In the Complaint, Plaintiffs allege that on August 12, 2022, they purchased a 2022 Audi A8 L (the “Vehicle”), on which Defendant issued a written warranty. (Complaint at ¶¶ 8-9, 21.) The Vehicle was delivered to Plaintiffs with defects to the suspension, engine, and electrical systems that impaired the use, value, and safety of the Vehicle. (Complaint at ¶¶ 10, 22, 26.) Plaintiffs brought the Vehicle to Defendant for repairs, and Defendant could not conform the Vehicle to the warranty within a reasonable number of attempts. (Complaint at ¶¶ 11-14, 27-28.)

On August 25, 2025, Plaintiffs propounded requests for production of documents (“RFPs”) on Defendant. On October 31, 2025, Defendant served responses to the RFPs and produced some responsive documents. On December 31, 2025, Plaintiffs filed a motion to compel further responses to the RFPs.

On February 9, 2026, the Court granted Plaintiffs’ motion as to RFP nos. 1-14; granted the motion as to RFP nos. 15-30, but limited to vehicles of the same year, make, and model as the Vehicle and defects that Plaintiffs contend impaired the use, value, and safety of the Vehicle; and denied the motion as to RFP no. 31. The Court ordered Defendant to “serve verified responses to the Demand for Production of Documents, Set One, without objections, within 30 days of service of notice consistent with this order.” (2/9/26 Minute Order.) As of the date identified by the Court for further responses (March 11, 2026), Defendant failed to serve such responses.